

SOLVED PRACTICE WORKBOOK

Administrative Tribunals - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Administrative Tribunals REFRESHED TEACHING NAVIGATION — BASIC/CORE FIRST	
01 SNAPSHOT Its principal consequence is that feature Article 323-A Article 323-B.	02 CORE ARCHITECTURE The decisive contrast is between by a High Court Division Bench and
03 TRIBUNAL REFORMS ACT, 2021 The operative mechanism matters because service conditions for	04 VERIFIED PYQ APPLICATION The exam-safe limitation is that 2025 GS-II Q2 (10 marks, 150 words):
05 TRAPS Technically, Traps is analysed by relating Tribunal to High Court, then	06 DEMAND AND DIRECTIVE MAP Its principal consequence is that demand family Directive signals
07 QUALIFIED THESIS OPTIONS Technically, Qualified thesis options is analysed by relating Qualified	08 MARK-SCALED STRUCTURES Technically, Mark-scaled structures is analysed by relating Thesis --
09 BANK A — CONSTITUTIONAL DESIGN AND THE JUDICIAL-REVIEW SETTLEMENT The decisive contrast is between Constitutional rule and	10 BANK C — LOK ADALATS VERSUS ARBITRATION (THE ADR DISTINCTION) Provision: the Legal Services Authorities Act, 1987 (constitutional)
11 MECHANISM, INSTITUTIONAL INCENTIVES AND CONSEQUENCES Its principal consequence is that constitutional rule.	12 CRITICISM, COUNTER-ARGUMENT, VARIATION AND IMPLEMENTATION CONSTRAINTS Variation: State tribunals under Art 323B and SATs vary in workload
13 VERDICT SCAFFOLDS Chandra Kumar makes judicial review a floor no tribunal statute can	14 PRELIMS CLOSE-OPTION DISTINCTIONS Technically, Prelims close-option distinctions is analysed by relating
15 ARTICLES 323A AND 323B: EXACT CONSTITUTIONAL DISTINCTION The decisive contrast is between court exclusion text originally	16 CAT PROCESS, EXCLUSIONS AND JUDICIAL-REVIEW CHAIN BOUNDARIES specified constitutional officeholders and excluded

Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Administrative Tribunals - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQs 1-36 - Broad Coverage

OM1. Which statement most accurately describes Article 323A?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. It creates every tax tribunal.
- C. States alone legislate under Article 323A.
- D. It abolishes High Courts.

Answer: A

Explanation: The Article is enabling and subject to the judicial-review basic structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM2. Which statement most accurately describes Article 323B?

- A. It is identical to Article 323A.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It automatically creates a national appellate tribunal.
- D. It is limited to Union civil servants.

Answer: B

Explanation: Subject, law-maker and scope distinguish the two Articles. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM3. Which statement most accurately describes Administrative Tribunals Act 1985?

- A. It is a constitutional amendment.
- B. It governs all private employment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It makes CAT a High Court.

Answer: C

Explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM4. Which statement most accurately describes CAT jurisdiction?

- A. CAT tries corruption offences.
- B. CAT reviews constitutional amendments.
- C. Every PSU employee automatically falls within CAT.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Explanation: Employer, post and statutory notification matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM5. Which statement most accurately describes procedure and powers?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. Flexible procedure means arbitrary procedure.
- C. CAT has no power to summon evidence.

- D. Natural justice never applies to tribunals.

Answer: A

Explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM6. Which statement most accurately describes judicial review?

- A. Tribunal orders go only by direct Article 136 appeal.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. High Court review was permanently excluded.
- D. CAT can overrule the Supreme Court.

Answer: B

Explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM7. Which statement most accurately describes independence?

- A. Executive funding is legally irrelevant.
- B. Short tenure always improves neutrality.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Expert members alone guarantee independence.

Answer: C

Explanation: Institutional design must match the judicial work transferred. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM8. Which statement most accurately describes rationalisation?

- A. Abolition removes judicial review.
- B. Rationalisation automatically reduces delay.
- C. Every merger is unconstitutional.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Explanation: Capacity and transition design determine outcomes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM9. Which statement most accurately describes R. Gandhi?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It abolished all tribunals.
- C. It made administrative members constitutional judges.
- D. It removed qualification standards.

Answer: A

Explanation: The functional-equivalence principle controls institutional design. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM10. Which statement most accurately describes Madras Bar Association?

- A. It bars Parliament from creating specialist forums.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It treats tenure as purely executive policy.
- D. It removes court review of appointments.

Answer: B

Explanation: Tribunal validity and particular service-condition defects must be separated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM11. Which statement most accurately describes Rojer Mathew?

- A. It held every Finance Act invalid.
- B. It removed judicial members.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It made tribunal recommendations binding legislation.

Answer: C

Explanation: The decision belongs to a continuing line rather than a single final settlement. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM12. Which statement most accurately describes CAT comparison?

- A. A Lok Adalat is an Article 323A tribunal.
- B. CAT and UPSC perform the same role.
- C. A commission's recommendation is a judicial decree.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Explanation: Institutional taxonomy prevents close-option errors. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM13. Which is the safest UPSC distinction concerning Article 323A?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. It creates every tax tribunal.
- C. States alone legislate under Article 323A.
- D. It abolishes High Courts.

Answer: A

Explanation: The Article is enabling and subject to the judicial-review basic structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM14. Which is the safest UPSC distinction concerning Article 323B?

- A. It is identical to Article 323A.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It automatically creates a national appellate tribunal.
- D. It is limited to Union civil servants.

Answer: B

Explanation: Subject, law-maker and scope distinguish the two Articles. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM15. Which is the safest UPSC distinction concerning Administrative Tribunals Act 1985?

- A. It makes CAT a High Court.
- B. It is a constitutional amendment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It governs all private employment.

Answer: C

Explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM16. Which is the safest UPSC distinction concerning CAT jurisdiction?

- A. CAT tries corruption offences.
- B. CAT reviews constitutional amendments.
- C. Every PSU employee automatically falls within CAT.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Explanation: Employer, post and statutory notification matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM17. Which is the safest UPSC distinction concerning procedure and powers?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. CAT has no power to summon evidence.
- C. Natural justice never applies to tribunals.
- D. Flexible procedure means arbitrary procedure.

Answer: A

Explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM18. Which is the safest UPSC distinction concerning judicial review?

- A. CAT can overrule the Supreme Court.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. Tribunal orders go only by direct Article 136 appeal.
- D. High Court review was permanently excluded.

Answer: B

Explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM19. Which is the safest UPSC distinction concerning independence?

- A. Expert members alone guarantee independence.
- B. Executive funding is legally irrelevant.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Short tenure always improves neutrality.

Answer: C

Explanation: Institutional design must match the judicial work transferred. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM20. Which is the safest UPSC distinction concerning rationalisation?

- A. Rationalisation automatically reduces delay.
- B. Every merger is unconstitutional.
- C. Abolition removes judicial review.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Explanation: Capacity and transition design determine outcomes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM21. Which is the safest UPSC distinction concerning R. Gandhi?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It removed qualification standards.
- C. It abolished all tribunals.
- D. It made administrative members constitutional judges.

Answer: A

Explanation: The functional-equivalence principle controls institutional design. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM22. Which is the safest UPSC distinction concerning Madras Bar Association?

- A. It bars Parliament from creating specialist forums.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It treats tenure as purely executive policy.
- D. It removes court review of appointments.

Answer: B

Explanation: Tribunal validity and particular service-condition defects must be separated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM23. Which is the safest UPSC distinction concerning Rojer Mathew?

- A. It removed judicial members.
- B. It made tribunal recommendations binding legislation.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It held every Finance Act invalid.

Answer: C

Explanation: The decision belongs to a continuing line rather than a single final settlement. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM24. Which is the safest UPSC distinction concerning CAT comparison?

- A. A Lok Adalat is an Article 323A tribunal.
- B. CAT and UPSC perform the same role.
- C. A commission's recommendation is a judicial decree.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Explanation: Institutional taxonomy prevents close-option errors. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM25. A candidate makes a close-option error about Article 323A. Which correction is most accurate?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. It abolishes High Courts.
- C. It creates every tax tribunal.
- D. States alone legislate under Article 323A.

Answer: A

Explanation: The Article is enabling and subject to the judicial-review basic structure. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM26. A candidate makes a close-option error about Article 323B. Which correction is most accurate?

- A. It is limited to Union civil servants.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It is identical to Article 323A.
- D. It automatically creates a national appellate tribunal.

Answer: B

Explanation: Subject, law-maker and scope distinguish the two Articles. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM27. A candidate makes a close-option error about Administrative Tribunals Act 1985. Which correction is most accurate?

- A. It is a constitutional amendment.
- B. It governs all private employment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It makes CAT a High Court.

Answer: C

Explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM28. A candidate makes a close-option error about CAT jurisdiction. Which correction is most accurate?

- A. CAT tries corruption offences.
- B. CAT reviews constitutional amendments.
- C. Every PSU employee automatically falls within CAT.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Explanation: Employer, post and statutory notification matter. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM29. A candidate makes a close-option error about procedure and powers. Which correction is most accurate?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. CAT has no power to summon evidence.
- C. Natural justice never applies to tribunals.
- D. Flexible procedure means arbitrary procedure.

Answer: A

Explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM30. A candidate makes a close-option error about judicial review. Which correction is most accurate?

- A. CAT can overrule the Supreme Court.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. Tribunal orders go only by direct Article 136 appeal.
- D. High Court review was permanently excluded.

Answer: B

Explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM31. A candidate makes a close-option error about independence. Which correction is most accurate?

- A. Expert members alone guarantee independence.
- B. Executive funding is legally irrelevant.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Short tenure always improves neutrality.

Answer: C

Explanation: Institutional design must match the judicial work transferred. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM32. A candidate makes a close-option error about rationalisation. Which correction is most accurate?

- A. Abolition removes judicial review.
- B. Rationalisation automatically reduces delay.
- C. Every merger is unconstitutional.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Explanation: Capacity and transition design determine outcomes. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM33. A candidate makes a close-option error about R. Gandhi. Which correction is most accurate?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It abolished all tribunals.
- C. It made administrative members constitutional judges.
- D. It removed qualification standards.

Answer: A

Explanation: The functional-equivalence principle controls institutional design. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM34. A candidate makes a close-option error about Madras Bar Association. Which correction is most accurate?

- A. It treats tenure as purely executive policy.
- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It removes court review of appointments.
- D. It bars Parliament from creating specialist forums.

Answer: B

Explanation: Tribunal validity and particular service-condition defects must be separated. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM35. A candidate makes a close-option error about Rojer Mathew. Which correction is most accurate?

- A. It removed judicial members.
- B. It made tribunal recommendations binding legislation.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It held every Finance Act invalid.

Answer: C

Explanation: The decision belongs to a continuing line rather than a single final settlement. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

OM36. A candidate makes a close-option error about CAT comparison. Which correction is most accurate?

- A. CAT and UPSC perform the same role.
- B. A commission's recommendation is a judicial decree.
- C. A Lok Adalat is an Article 323A tribunal.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Explanation: Institutional taxonomy prevents close-option errors. The other options collapse distinct legal sources, institutions or consequences and therefore fail the close-option test.

Remedial MCQs 1-12 - Common Error Repair

RM1. Which statement best repairs a recurring error about Article 323A?

- A. Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament.
- B. States alone legislate under Article 323A.
- C. It abolishes High Courts.
- D. It creates every tax tribunal.

Answer: A

Remedial explanation: The Article is enabling and subject to the judicial-review basic structure. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM2. Which statement best repairs a recurring error about Article 323B?

- A. It is identical to Article 323A.
- B. Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence.
- C. It automatically creates a national appellate tribunal.
- D. It is limited to Union civil servants.

Answer: B

Remedial explanation: Subject, law-maker and scope distinguish the two Articles. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM3. Which statement best repairs a recurring error about Administrative Tribunals Act 1985?

- A. It is a constitutional amendment.
- B. It governs all private employment.
- C. The 1985 Act establishes CAT and enables SAT arrangements for covered service matters.
- D. It makes CAT a High Court.

Answer: C

Remedial explanation: Statutory jurisdiction depends on the Act's coverage and exclusions. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM4. Which statement best repairs a recurring error about CAT jurisdiction?

- A. CAT reviews constitutional amendments.
- B. Every PSU employee automatically falls within CAT.
- C. CAT tries corruption offences.
- D. CAT hears covered recruitment and service disputes, not every public-law or criminal matter.

Answer: D

Remedial explanation: Employer, post and statutory notification matter. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM5. Which statement best repairs a recurring error about procedure and powers?

- A. CAT follows natural justice and statutory powers without being rigidly bound by the CPC.
- B. Natural justice never applies to tribunals.
- C. Flexible procedure means arbitrary procedure.
- D. CAT has no power to summon evidence.

Answer: A

Remedial explanation: Flexibility remains bounded by jurisdiction, fairness and reasoned orders. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM6. Which statement best repairs a recurring error about judicial review?

- A. High Court review was permanently excluded.
- B. L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227.
- C. CAT can overrule the Supreme Court.
- D. Tribunal orders go only by direct Article 136 appeal.

Answer: B

Remedial explanation: Tribunals are first-instance substitutes, not constitutional-court replacements. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM7. Which statement best repairs a recurring error about independence?

- A. Executive funding is legally irrelevant.
- B. Short tenure always improves neutrality.
- C. Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence.
- D. Expert members alone guarantee independence.

Answer: C

Remedial explanation: Institutional design must match the judicial work transferred. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM8. Which statement best repairs a recurring error about rationalisation?

- A. Abolition removes judicial review.
- B. Rationalisation automatically reduces delay.
- C. Every merger is unconstitutional.
- D. Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts.

Answer: D

Remedial explanation: Capacity and transition design determine outcomes. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM9. Which statement best repairs a recurring error about R. Gandhi?

- A. Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions.
- B. It made administrative members constitutional judges.
- C. It removed qualification standards.
- D. It abolished all tribunals.

Answer: A

Remedial explanation: The functional-equivalence principle controls institutional design. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM10. Which statement best repairs a recurring error about Madras Bar Association?

- A. It treats tenure as purely executive policy.

- B. The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements.
- C. It removes court review of appointments.
- D. It bars Parliament from creating specialist forums.

Answer: B

Remedial explanation: Tribunal validity and particular service-condition defects must be separated. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM11. Which statement best repairs a recurring error about Rojer Mathew?

- A. It held every Finance Act invalid.
- B. It removed judicial members.
- C. Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence.
- D. It made tribunal recommendations binding legislation.

Answer: C

Remedial explanation: The decision belongs to a continuing line rather than a single final settlement. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

RM12. Which statement best repairs a recurring error about CAT comparison?

- A. A commission's recommendation is a judicial decree.
- B. A Lok Adalat is an Article 323A tribunal.
- C. CAT and UPSC perform the same role.
- D. CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review.

Answer: D

Remedial explanation: Institutional taxonomy prevents close-option errors. Write the governing source, then the mechanism, and finally the limitation before choosing an option.

PYQS AND ANSWER PRACTICE

Verified and Supporting PYQs with Model Solutions

Verified direct PYQ 1 - 2018 GS-II Q12

Question: How far do you agree that tribunals curtail the jurisdiction of ordinary courts? Discuss.

Directive: How far do you agree? Discuss · **Marks:** 15 · **Word limit:** 250

Model solution

Opening: How far do you agree that tribunals curtail the jurisdiction of ordinary courts? Discuss. The answer must respond to the directive **How far do you agree? Discuss** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Tribunals transfer first-instance jurisdiction but cannot extinguish constitutional judicial review.
- **Claim -> evidence -> analysis -> qualification:** Articles 323A/323B contemplated exclusion, but L. Chandra Kumar (1997) restored Articles 226/227 review.
- **Claim -> evidence -> analysis -> qualification:** Madras Bar Association (2014) protected judicial functions from executive-dominated replacement.
- **Claim -> evidence -> analysis -> qualification:** Tribunals supplement rather than supplant constitutional courts.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 2 - 2019 GS-II Q2

Question: The Central Administrative Tribunal exercises independent judicial authority. Explain.

Directive: Explain · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: The Central Administrative Tribunal exercises independent judicial authority. The answer must respond to the directive **Explain** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** CAT is a statutory adjudicatory forum under the Administrative Tribunals Act 1985.
- **Claim -> evidence -> analysis -> qualification:** It decides covered service disputes through reasoned orders and natural justice.
- **Claim -> evidence -> analysis -> qualification:** Its independence is functional but structurally qualified by appointments, tenure and executive support.
- **Claim -> evidence -> analysis -> qualification:** High Court review after L. Chandra Kumar (1997) prevents a self-contained parallel judiciary.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Supporting routed PYQ 3 - 2024 GS-II Q2

Question: Explain and distinguish Lok Adalats and Arbitration Tribunals.

Directive: Explain and distinguish · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Explain and distinguish Lok Adalats and Arbitration Tribunals. The answer must respond to the directive **Explain and distinguish** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Lok Adalat is statutory and conciliatory; arbitration is consensual and adjudicatory.
- **Claim -> evidence -> analysis -> qualification:** The Legal Services Authorities Act 1987 and Arbitration and Conciliation Act 1996 supply different legal bases.
- **Claim -> evidence -> analysis -> qualification:** Lok Adalat awards rest on settlement; arbitral awards face limited Section 34 challenge.
- **Claim -> evidence -> analysis -> qualification:** Neither institution is an administrative tribunal under Article 323A.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Verified direct PYQ 4 - 2025 GS-II Q2

Question: Comment on the need for administrative tribunals compared with courts and assess the 2021 rationalisation reforms.

Directive: Comment and assess · **Marks:** 10 · **Word limit:** 150

Model solution

Opening: Comment on the need for administrative tribunals compared with courts and assess the 2021 rationalisation reforms. The answer must respond to the directive **Comment and assess** rather than merely describe the topic.

- **Claim -> evidence -> analysis -> qualification:** Expertise, flexible procedure and high-volume specialisation justify tribunals.
- **Claim -> evidence -> analysis -> qualification:** Rationalisation can remove duplication but may transfer specialised work to burdened courts.
- **Claim -> evidence -> analysis -> qualification:** Independent selection, secure tenure, benches and infrastructure determine actual speed.
- **Claim -> evidence -> analysis -> qualification:** The post-2025 constitutional position must be stated with a dated service-condition caveat.

Conclusion: The strongest answer identifies the governing design, shows how it operates with named evidence, tests the counter-position and ends with a qualified institutional verdict.

Original Solved Mains Practice

M1. Distinguish Articles 323A and 323B.

Directive: Distinguish · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Distinguish Articles 323A and 323B. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Article 323B - claim -> evidence -> analysis -> qualification:** Article 323B covers specified subject fields and allows the appropriate legislature to create tribunals within competence. Subject, law-maker and scope distinguish the two Articles.
- **Administrative Tribunals Act 1985 - claim -> evidence -> analysis -> qualification:** The 1985 Act establishes CAT and enables SAT arrangements for covered service matters. Statutory jurisdiction depends on the Act's coverage and exclusions.
- **Cat Jurisdiction - claim -> evidence -> analysis -> qualification:** CAT hears covered recruitment and service disputes, not every public-law or criminal matter. Employer, post and statutory notification matter.
- **Procedure And Powers - claim -> evidence -> analysis -> qualification:** CAT follows natural justice and statutory powers without being rigidly bound by the CPC. Flexibility remains bounded by jurisdiction, fairness and reasoned orders.
- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M2. Explain CAT's jurisdiction, procedure and review chain.

Directive: Explain · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Explain CAT's jurisdiction, procedure and review chain. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Administrative Tribunals Act 1985 - claim -> evidence -> analysis -> qualification:** The 1985 Act establishes CAT and enables SAT arrangements for covered service matters. Statutory jurisdiction depends on the Act's coverage and exclusions.
- **Cat Jurisdiction - claim -> evidence -> analysis -> qualification:** CAT hears covered recruitment and service disputes, not every public-law or criminal matter. Employer, post and statutory notification matter.
- **Procedure And Powers - claim -> evidence -> analysis -> qualification:** CAT follows natural justice and statutory powers without being rigidly bound by the CPC. Flexibility remains bounded by jurisdiction, fairness and reasoned orders.
- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.
- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M3. Why do tribunals not replace constitutional courts?

Directive: Explain · **Marks:** 10 · **Suggested words:** 150

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Why do tribunals not replace constitutional courts? The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Cat Jurisdiction - claim -> evidence -> analysis -> qualification:** CAT hears covered recruitment and service disputes, not every public-law or criminal matter. Employer, post and statutory notification matter.
- **Procedure And Powers - claim -> evidence -> analysis -> qualification:** CAT follows natural justice and statutory powers without being rigidly bound by the CPC. Flexibility remains bounded by jurisdiction, fairness and reasoned orders.
- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.
- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.
- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M4. Assess administrative tribunals as instruments of expertise, speed and access.

Directive: Assess · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Assess administrative tribunals as instruments of expertise, speed and access. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Procedure And Powers - claim -> evidence -> analysis -> qualification:** CAT follows natural justice and statutory powers without being rigidly bound by the CPC. Flexibility remains bounded by jurisdiction, fairness and reasoned orders.
- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.
- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.
- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.
- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M5. Examine executive control, vacancies and short tenure as threats to tribunal independence.

Directive: Examine · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Examine executive control, vacancies and short tenure as threats to tribunal independence. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Judicial Review - claim -> evidence -> analysis -> qualification:** L. Chandra Kumar (1997) preserves High Court Division Bench review under Articles 226/227. Tribunals are first-instance substitutes, not constitutional-court replacements.
- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.
- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.
- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.
- **Madras Bar Association - claim -> evidence -> analysis -> qualification:** The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements. Tribunal validity and particular service-condition defects must be separated.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M6. Evaluate tribunal rationalisation and abolition as pendency reforms.

Directive: Evaluate · **Marks:** 15 · **Suggested words:** 250

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Evaluate tribunal rationalisation and abolition as pendency reforms. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Independence - claim -> evidence -> analysis -> qualification:** Appointments, tenure, removal, infrastructure and administrative control determine tribunal independence. Institutional design must match the judicial work transferred.
- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.
- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.
- **Madras Bar Association - claim -> evidence -> analysis -> qualification:** The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements. Tribunal validity and particular service-condition defects must be separated.

- **Roger Mathew - claim -> evidence -> analysis -> qualification:** Roger Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence. The decision belongs to a continuing line rather than a single final settlement.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M7. Trace the constitutional evolution of tribunal judicial review from the 42nd Amendment to L. Chandra Kumar and later cases.

Directive: Trace and analyse · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Trace the constitutional evolution of tribunal judicial review from the 42nd Amendment to L. Chandra Kumar and later cases. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **Rationalisation - claim -> evidence -> analysis -> qualification:** Abolishing or merging tribunals can reduce duplication but can also shift specialised work and pendency to courts. Capacity and transition design determine outcomes.
- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.
- **Madras Bar Association - claim -> evidence -> analysis -> qualification:** The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements. Tribunal validity and particular service-condition defects must be separated.
- **Roger Mathew - claim -> evidence -> analysis -> qualification:** Roger Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence. The decision belongs to a continuing line rather than a single final settlement.
- **Cat Comparison - claim -> evidence -> analysis -> qualification:** CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review. Institutional taxonomy prevents close-option errors.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.

M8. Propose a tribunal reform architecture consistent with independence, specialisation, access and constitutional review.

Directive: Propose · **Marks:** 20 · **Suggested words:** 300

Demand decode: Define the exact institutional or doctrinal issue, answer the directive, use named constitutional/statutory/judicial evidence, include the strongest counterpoint and reach a qualified verdict.

Examiner opening: Propose a tribunal reform architecture consistent with independence, specialisation, access and constitutional review. The issue should be analysed through constitutional purpose, operating mechanism and enforceable limitation.

- **R. Gandhi - claim -> evidence -> analysis -> qualification:** Union of India v. R. Gandhi (2010) accepts tribunalisation only with independence safeguards equivalent to transferred judicial functions. The functional-equivalence principle controls institutional design.
- **Madras Bar Association - claim -> evidence -> analysis -> qualification:** The Madras Bar Association line invalidates executive-dominated or insecure tribunal arrangements. Tribunal validity and particular service-condition defects must be separated.

- **Rojer Mathew - claim -> evidence -> analysis -> qualification:** Rojer Mathew (2019) challenged the rules framework and reinforced scrutiny of tribunal independence. The decision belongs to a continuing line rather than a single final settlement.
- **Cat Comparison - claim -> evidence -> analysis -> qualification:** CAT is an adjudicatory tribunal; commissions investigate or advise, and constitutional courts retain supervisory review. Institutional taxonomy prevents close-option errors.
- **Article 323A - claim -> evidence -> analysis -> qualification:** Article 323A concerns administrative tribunals for public-service recruitment and service conditions and can be legislated by Parliament. The Article is enabling and subject to the judicial-review basic structure.

Counter-position: Institutional reform can improve accountability, but overbroad regulation may displace autonomy, federal choice, expertise or access. The answer must identify the exact trade-off rather than offer a generic reform list.

Conclusion: Prefer a calibrated design that preserves the institution's constitutional purpose while adding transparency, independence, reason-giving and judicially reviewable safeguards.